3961 Temporary

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the Amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement One Thousand One Hundred Thirty-two shares of the 8% preferred stock of Stern Brothers, a corporation of the State of New York, formerly belonging to A. Schaaffhausenscher Bankverein A. G., Cologne, Germany, at a price of One Hundred Fifteen ($115.) Dollars per share plus interest at the rate of 8% per annum from the last dividend payment to the date of purchase, which said shares were heretofore seized by the Alien Property Custodian under the provisions of said Act.

My reasons for the foregoing determination and order are:

(a) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(b) That an advantageous offer for the purchase of said shares of stock has been received by the Alien Property Custodian.

(c) That this sale is very advantageous to the original enemy owners, as the Alien Property Custodian will be getting the highest price at which the stock can ever sell, as its call price of $115. per share substantially limits the price of the stock to that figure—as the company has the right to call the stock at any time on thirty days' notice, either in whole or in part.

CALVIN COOLIDGE

THE WHITE HOUSE,
February 19, 1924.

[No. 3961.]

GOVERNMENT PRINTING OFFICE